

TENTATIVE RULING:

Plaintiff Khoi Senderowicz seeks leave to file a First Amended Complaint to add allegations arising out of recently discovered information—both external and internal to the litigation—additional legal research, and to remove inapplicable claims. The Court has received no timely opposition.

Code of Civil Procedure § 473(a)(1) provides the Court discretion to permit a party to amend its pleadings. There is “a policy of great liberality in permitting amendments to the complaint at any stage of the proceedings, up to and including trial [citations]...” (*Magpali v. Farmers Group* (1996) 48 Cal.App.4th 471, 487.) Leave to amend can be denied where there is “‘inexcusable delay and probable prejudice to the opposing party’... [Citation.]” (*Ibid.*) “[I]t is a rare case in which ‘a court will be justified in refusing a party leave to amend his pleadings so that he may properly present his case.’” (*Morgan v. Superior Court of Los Angeles County* (1959) 172 Cal.App.2d 527, 530 quoting *Guidery v. Green* (1892) 95 Cal. 630, 633.)

“Generally, leave to amend must be liberally granted [Citation], provided there is no statute of limitations concern, nor any prejudice to the opposing party, such as delay in trial, loss of critical evidence, or added costs of preparation.” (*Solit v. Tokai Bank* (1999) 68 Cal.App.4th 1435, 1448.)

Although this case has been pending for two years, it appears to the Court that this request is timely and appropriate. After considering the moving papers, and applying the relevant law, the Court makes the following findings and orders.

Ruling

No timely opposition was filed with the Court. Plaintiff’s motion is granted. The First Amended Complaint is ordered filed. Plaintiff’s Counsel are ordered to prepare and e-file a conforming order to signed by the Court within five days of the date of this hearing. No appearance is required at the hearing on March 5, 2026.

3. 9:00 AM CASE NUMBER: C24-02109
CASE NAME: KATHLEEN CABALLERO VS. FREEDOM FOREVER, LLC
***HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS**
FILED BY: FREEDOM FOREVER, LLC

TENTATIVE RULING:

Before the Court is a motion for judgment on the pleadings (“Motion”) filed by defendant Freedom Forever, LLC (“Defendant”). The Motion argues that the second cause of action (financial elder abuse), third cause of action (negligent misrepresentation), fourth cause of action (negligence), and fifth cause of action (Business and Professions Code, §17200), fail to state facts sufficient to constitute causes of action.

For the reasons set forth below, the hearing on the Motion is continued until **Thursday, April 23, 2026, at 9:00 a.m., in Department 10**. The parties shall meet and confer **by March 26, 2026**, and Defendant shall file the required “meet and confer” declaration showing compliance with Code of Civil Procedure section 439, subdivision (a), **by April 9, 2026**.

Code of Civil Procedure section 439, subdivision (a), requires the party intending to file a motion for judgment on the pleadings to meet and confer with the party whose pleading is being challenged “**in person, by telephone, or by video conference**” prior to filing the motion for judgment on the pleadings. In addition to this, a party may satisfy this requirement when the party who filed the pleading subject to the motion “failed to respond to the meet and confer request of the moving party. . . .” (*Ibid.*) The moving party must then file a declaration with the motion attesting to the party’s compliance with the meet and confer requirement. (*Ibid.*) Courts have wide discretion to continue hearings to order further meet and confer efforts to take place. (See *Dumas v. Los Angeles County Bd. of Supervisors* (2020) 45 Cal.App.5th 348, 355, fn. 3 [“Of course, trial courts are not required to ignore defects in the meet and confer process. If, upon review of a declaration under section 430.41, subdivision (a)(3), a court learns no meet and confer has taken place, or concludes further conferences between counsel would likely be productive, it retains discretion to order counsel to meaningfully discuss the pleadings with an eye toward reducing the number of issues or eliminating the need for a demurrer, and to continue the hearing date to facilitate that effort.”].)

The Stephen A. Horner Declaration does not state the parties met and conferred in the manner required by the Code of Civil Procedure. (Horner Decl. ¶¶ 1-2 and Exh. 1.) The letter sent by Defendant’s counsel does not request to meet and confer, as nowhere does the attorney ask the party whose pleading is being challenged to schedule a call, videoconference, or meeting, or offer available dates to conduct such a conference. (See Horner Decl., Exh. 1 [8/11/2025 letter stating, “If you would like to discuss further, please let me know so that we can schedule a phone call” and “Please respond and indicate whether the complaint will be amended.”].) Inviting the plaintiffs’ counsel to contact Defendant’s counsel “if” that counsel “would like to discuss” the Motion does not meet the letter or spirit of the meet and confer requirement of Code of Civil Procedure section 439, subdivision (a). The hearing is therefore continued for the parties to meet and confer pursuant to the statute.

4. 9:00 AM CASE NUMBER: C24-02350
CASE NAME: LAMONT ROBINSON VS. GREG MUNRO
***HEARING ON MOTION IN RE: LEAVE TO FILE FIRST AMENDED COMPLAINT**
FILED BY: ROBINSON, LAMONT
TENTATIVE RULING:

Plaintiff Lamont Robinson’s motion for leave to file a first amended complaint is **granted**, subject to the conditions below. Among the amendments, Plaintiff Lamont Robinson is removed from the complaint and replaced with Plaintiff Andrea Smith.

Motion

Plaintiff is suing for various business and landlord-tenant related torts. In the original complaint, Plaintiff alleges that he purchased the business, Keep You Neat cleaners, from Defendant Saucedo in March 2023. Saucedo would work as an employee of the business. As part of this deal, Plaintiff assumed the lease where the business was located. Plaintiff also alleged the Greg Munro was the landlord of the building where the business was located.